

CODE

Right to information

Draft for member review | 29 September 2026

Plain language summary

A written request, an answer in 30 days, a closed list of exceptions, and an appeal the next day if the deadline is missed. Members cannot check a decision they are not allowed to read. The exceptions are listed so they cannot be widened by a letter.

Working draft. Not adopted law. Not a legal opinion. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument is how a member obtains a record. It is in addition to the copies required by the First Nations Financial Transparency Act, sections 7 and 8. Those sections still apply to the financial documents named in them.

Part 2. The request

2.1 A member makes a request in writing to the records officer. It must describe the record. The records officer must acknowledge it within 5 days and must say if the description is too vague to search.

2.2 The records officer must give a written decision within 30 days: release, partial release, or refusal. One extension of 15 days is allowed if, before day 30, the officer posts written reasons that name the number of records left to search. A second extension is void.

2.3 If no decision is given by the deadline, the request is deemed refused on the next day. The member may go to the appeal body that day. The appeal body must order release or confirm a refusal within 20 days. If the body misses day 20, it must post the request, and council honoraria stop until an order is posted.

2.4 No fee for a record of 50 pages or fewer. Above that, the fee must not exceed the cost of copying, which matches the limit in the transparency statute for the documents that statute covers. A fee invoice must be sent within the same 30 days. The days pause only while a fee over the free 50 pages is unpaid, and only after the invoice is sent.

Part 3. Exceptions

3.1 The records officer may refuse only these, and must name which one in the refusal:

- Personal information of another identifiable member, including health and student records.
- Advice that is solicitor and client privilege.
- A bid or proposal, until the day the contract is signed. On that day the exception ends.
- A record whose release would risk the safety of a named person. The officer must state the risk in writing to the appeal body at the same time as the refusal. The public refusal may omit the detail that creates the risk.

3.2 Any other reason, including embarrassment, a pending election, or a direction from a councillor, is void. The officer must release within 5 days of the appeal body saying the reason is not on the list. A councillor who directs a refusal for a reason not on the list must not handle records requests for 90 days.

Part 4. The log

4.1 The records officer must keep a public log: the date of the request, the date of the decision, and whether it was released or refused, with the exception number. Names of requesters are not on the log. The log is updated within 2 days of each decision. A log that is more than 5 decisions behind must be posted current within 2 days of the appeal body saying so, or the body must name a new records officer within 10 days.

Part 5. Amendment

5.1 Council must not amend this right-to-information instrument by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

5.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

5.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, the off-reserve councillor position, the rule that one person must not commit more than \$10,000, the open invitation for a contract over \$25,000, the public mandate and the quarterly report, the removal petition, or the rule that members, not council alone, amend a law does not pass under 5.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

5.5 The electoral officer must post the count within 3 days.

Part 6. Review and coming into force

6.1 The appeal body must review this right-to-information instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this right-to-information instrument.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this right-to-information instrument comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this right-to-information instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.